

Premvati v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 November 2019 · Writ-C No. 37926 of 2019 · Writ-C No. 37926 of 2019 · **Writ dismissed for failure to appear under Clause 6.8.**

HEADNOTE

A second writ seeking quashing of a later departmental notice and restoration of supply was dismissed where the consumer had not appeared before the Executive Engineer on the date fixed under an earlier order relegating a theft-based demand to Clause 6.8 of the U.P. Electricity Supply Code, 2005. The Court held there was no justification to interfere on the same cause of action.

FACTUAL SUMMARY

Premvati sought quashing of a 22 October 2019 notice of the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Kiravali, Agra, and restoration of her electricity connection. She had earlier challenged an 18 December 2018 demand of Rs. 7,02,500 after inspection alleged theft by 'Katiya' from the main line. Writ-C No. 3942 of 2019 was disposed of on 5 February 2019 directing her to appear before the Executive Engineer on 13 February 2019 under Clause 6.8. The Department said she failed to appear as directed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

second writ after failure to appear at directed Clause 6.8 hearing

HOLDING

Where an earlier writ against a theft-based electricity demand was disposed of by directing the consumer to appear before the Executive Engineer under Clause 6.8, and the consumer does not appear on the date fixed, a later writ on the same cause of action seeking quashing of a subsequent notice and restoration of supply is not maintainable and will be dismissed without merits interference. ¶ 1

FLAG quoted earlier order treated a 'Katiya' theft allegation as remediable under Clause 6.8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ALLEGATION, THE RS. 7,02,500 DEMAND, THE 22.10.2019 NOTICE, AND RESTORATION OF SUPPLY

Dismissed for non-appearance before the Executive Engineer as directed in Writ-C No. 3942 of 2019; no merits adjudication. ¶ 1